

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC,

RESPONDENT.

**COMPLAINANT PELOTON INTERACTIVE, INC.’S
THIRD MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. (“Peloton”) moves pursuant to Rules 5(b) and 69 of the Federal Maritime Commission’s Rules of Practice and Procedure and the May 13, 2024 Initial Order in this proceeding (“Initial Order”) for confidential treatment of Exhibits Nos. 1 and 2 to Peloton’s Opposition to Respondent Flexport International LLC’s (“Flexport”) Motion to Dismiss and for Sanctions (“Opposition”).

On December 13, 2024, Peloton and Flexport entered a Stipulation of Confidentiality (“Confidentiality Agreement”), which provides among other things, that “Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5.” *See Exhibit A* at ¶ 5.

Peloton’s Opposition includes two exhibits (Exhibits Nos. 1 and 2), which were produced by Flexport in this matter. Confidentiality is necessary with regard to Exhibits Nos. 1 and 2 to

Peloton's Opposition because they include commercially sensitive and personally identifiable information and have been designated as confidential by Flexport.

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating "the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii)." 46 C.F.R. § 502.5(b). Here, good cause exists for protection of the identified portions in Exhibits Nos. 1 and 2 that contain commercially sensitive information. Further, Exhibits Nos. 1 and 2 include personally identifiable information for a number of Peloton employees, Flexport employees, and third parties.

Pursuant to Rule 5(b), Peloton will file both confidential and public versions of Exhibits Nos. 1 and 2 to Peloton's Opposition.

CONCLUSION

For the foregoing reasons, Peloton respectfully requests that the Presiding Officer grant Peloton's motion for confidential treatment.

Dated: May 12, 2025

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: May 12, 2025

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